

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

vs.

Case No. 2022-CC-7183-AX

JAMES B. FOX and
ANY UNKNOWN TENANT(s),

Defendants.

**MOTION FOR FINAL JUDGMENT IN DEFAULT FOR
DAMAGES AND JUDICIAL SALE**

COMES NOW, the Plaintiff, COLONIAL MOBILE MANOR LIMITED, LLC., d/b/a COLONIAL MOBILE MANOR, by and through the undersigned counsel, moves this Court to grant final summary default judgment against Defendants, JAMES B. FOX and ANY UNKNOWN TENANT(s), in the above-styled cause and Plaintiff alleges the following facts:

1. Plaintiff brought an action against the Defendants, JAMES B. FOX and UNKNOWN TENANT(s), seeking eviction, damages and enforcement of a landlord lien and for judicial sale of the premises to satisfy the Plaintiff's landlord lien.

2. Defendants all failed to file an answer or other defenses to the Complaint and were duly defaulted by the Clerk of Court.

3. A writ of possession was granted on behalf of the Plaintiff, which was served upon the Defendants, and Plaintiff was granted possession of the premises.

4. Plaintiff is entitled to a judgment on all well pled allegations of its complaint, and to accept such evidence at a hearing on this Motion.

5. Pursuant to the Affidavit of Indebtedness of Plaintiff's Residential Manager, incorporated into this Motion and attached as Exhibit A, Defendants are indebted to Plaintiff in the sum of \$8,431.74 which sum includes rent, late rent fees, water/sewer fees and late fees for failure to pay for water and sewer.

6. Pursuant to Fla. Statutes §713.691 Plaintiff is entitled to a lien against Defendants' personal property in the possession of the Plaintiff.

7. By virtue of this lien, Plaintiff is entitled to a judicial sale of personal property located on Lot 91 of Colonial Mobile Manor, that is, *1971 double-wide mobile home, Unknown Make and Model, Vehicle Identification No. FC24324SL1901B, Title No. 0004962585 and Vehicle Identification No. FC24324SL1901A, Title No. 0004962584.*

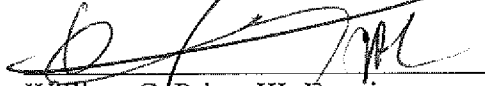
8. The record owner of this mobile home is JAMES B. FOX.

9. Pursuant to Fla. Statutes §723.0861 Plaintiff is entitled to an award of attorney's fees by virtue of prevailing in an action to enforce rights arising out of a mobile home lot rental agreement. Plaintiff has or will expend the sum of \$2,100.00 in attorney's fees and \$721.20 for costs expended and anticipated to be expended as a result of the Court's Order for a Judicial Sale of the mobile home located on Plaintiff's premises, as evidenced by the Affidavit of Time and Costs Expended attached as Exhibit B. The Affidavit of Attorney Fees is attached as Exhibit C.

WHEREFORE, Plaintiff moves this Court for judgment against Defendants, JAMES B. FOX and ANY UNKNOWN TENANT(s), for damages, costs, attorney's fees and an order for a judicial sale of the mobile home which is referred to in this Complaint.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Final Judgment for Eviction, Damages and Judicial Sale has been furnished to the Defendants, JAMES B. FOX and ANY UNKNOWN TENANT(s), at their last known address of 900 - 9th Avenue East, Lot #91, Palmetto, Florida, 34221, this 2nd day of March, 2023.



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